

PART I.

Whereunto I give this answer: That there is no court in Westminster-hall which doth so sharply correct the neglect of convenient form in him which complaineth, as this court, thereby to put sufficient certainty to the matter fit for the judgment of this court, discharging the parties with costs double to expence. But the gravity of this court condemneth to give allowance to every cavillation, and that upon great and good grounds; for it would but protract and delay him which complaineth, and protect him that is an offender, by which the Commonwealth should receive prejudice; for *interest reipublicæ ne delicta maneant impunita*: and therefore the lord chancellor Egerton, with great wisdom, denied to give allowance to the frivolous exceptions to bills at the hearing, as injurious to the subject and prejudicial to the state; of which I shall more fitly speak hereafter.

BUT for the custody of records, howsoever in these latter times they may be neglected, for that some great men have delivered their opinions that it were no great matter whether any pleading remained or not after the cause heard, because the judgment cannot be reversed by error; and causes have, upon deliberation, been ordered to proceed to hearing upon copies, the original being withdrawn by neglect, and no care taken to have them engrossed *de novo*, and orderly filed: so also the very sentences by which severe punishment hath been executed upon offenders have, by mere neglect, been wholly left unentered; so that there is no record to justify the inflicting of that punishment: howsoever, I say, this negligence hath crept into the court of very late time, either in mr. Mills's age, or since the office hath been executed by many deputies, one being thrust out by that time he understandeth the duties of the place, and another put in altogether unexperienced; yet in former times the judgments before the king and his council were kept in such care, and remain in such order, as no records of
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